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General Comment

See attached file(s)

Attachments

FOR SHARING_ Chamber Request for Information on the Development of an Artificial Intelligence (AI) Action Plan



March 12, 2025

Networking and Information Technology Research and Development (NITRD) National Coordination Office (NCO), National Science Foundation

Submitted by: Todd O'Boyle, Vice President - Technology Policy, Chamber of Progress

Re: Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

Dear National Science Foundation,

On behalf of Chamber of Progress—a tech industry association supporting public policies to build a more inclusive country in which all people benefit from technological advances—we appreciate the opportunity to share this response to your Request for Information on the Development of an Artificial Intelligence (AI) Action Plan, 90 FR 9088.

In developing its AI Action Plan, the White House has a pivotal opportunity to reinforce U.S. dominance in artificial intelligence and establish a regulatory framework that ensures all Americans benefit from the economic and societal progress AI innovation promises. A balanced, growth-oriented approach to AI regulation is essential to fostering a competitive and dynamic AI ecosystem—where both large and small firms can thrive, market forces drive technological breakthroughs, and consumers can access diverse AI models and applications. To achieve this, the administration should prioritize a regulatory environment that minimizes unnecessary burdens while making targeted strategic investments in key components of the AI value chain.

We are encouraged by the White House's shift away from the, at- times, overly prescriptive regulatory approach previously pursued by the Biden Administration, which risked stifling the pace of AI progress. However, as the administration recalibrates its approach to AI governance, it must exercise caution to avoid unintended consequences that could hamper U.S. competitiveness. To this end, our comment advances the following recommended actions for inclusion in the White House's AI Action Plan: (1) Take a light-touch approach to regulating AI models; (2) Employ an “all of the above” energy strategy that harnesses both renewable and nonrenewable energy sources to support US datacenters; (3) Support critical research at leading US institutions and strengthen

the STEM pipeline; (4) Avoid imposing regulations that seek to enforce ideological neutrality in foundation models.

1. Don't repeat the mistakes of the Biden Administration: Take a light-touch approach to regulating foundation models.

The Biden Administration's heavy-handed use of executive authority risked creating excessive compliance burdens that could slow progress and consolidate AI development among a small group of major firms. In crafting its AI Action Plan, the Trump Administration should focus on striking a strategic equilibrium between mitigating risks and leveraging the transformative potential of AI technologies. The White House should adopt a "light-touch" approach to AI regulation, prioritizing transparency, voluntary standards, and market-driven solutions.

Specifically, in replacing the Biden Administration's executive order, **the current administration should avoid using compute-based thresholds as a proxy for risk.**

Training compute is an imperfect and largely ineffective proxy for model risk. Research shows that the relationship between compute and risk is shifting as smaller models regularly outperform larger ones.¹ China's recent release of DeepSeek provides a timely example of a model that can achieve high performance with radically less compute than most frontier models.² Further, different modalities (language models, code models, biological models, etc.) often require different levels of compute.³ Imposing regulatory thresholds based solely on compute levels risks disproportionately penalizing certain AI modalities, while implementing multiple thresholds could introduce perverse incentives, enabling developers to strategically optimize for compliance rather than meaningful risk mitigation.

For the U.S. to remain competitive in AI, developers must have the flexibility to experiment with various strategies, from scaling compute to optimizing architectures, data efficiency, and algorithmic innovation. Rigid compute-based thresholds risk privileging certain model designs over others and creating barriers to research and development in the field.

Additionally, the White House should **refrain from invoking the Defense Production Act (DPA) to mandate AI developers share sensitive information.** While national security and public interest are paramount, using the DPA in this context could undermine the trust between developers, their partners, and the public. Forced information sharing without proper safeguards could lead to unintended consequences, including an erosion of public

¹ Sara Hooker p. 5. "[On the Limitations of Compute Thresholds as a Governance Strategy](#)". arXiv (July 2024).

² Peter Hanbury et al. "[DeepSeek: A Game Changer in AI Efficiency?](#)" Bain & Company (February 2025).

³ Sara Hooker p. 16. "[On the Limitations of Compute Thresholds as a Governance Strategy](#)". arXiv (July 2024).

confidence in AI technologies. Compelling companies to disclose proprietary algorithms could expose them to intellectual property theft and create opportunities for misuse by competitors or bad actors, potentially disincentivizing investment in AI development and undermining innovation. Mandating disclosures through the DPA could also impose substantial costs on AI developers, including investments in compliance infrastructure and specialized personnel.⁴ Coupled with the opportunity costs of regulatory compliance, these burdens could put U.S. developers at a strategic disadvantage in the global AI race.

2. Employ an “all of the above” strategy to meet the energy demands of AI development.

In 2023, U.S. data centers consumed more than 4% of total electricity, and this proportion is expected to rise to 9% by 2030, far outpacing the 0.5% increase per year that utility providers typically anticipate.⁵ To meet the growing demand while ensuring reliability and affordability, the U.S. must adopt an “all-of-the-above” energy strategy that leverages a diverse mix of energy sources. This includes expanding renewable generation—such as wind, solar, and hydroelectric power while maintaining a stable baseload supply through nuclear energy and the responsible use of fossil fuels.

Research suggests no one energy source alone can meet the expected demand. Renewable energy sources like solar and wind are best positioned to meet near-term energy demand because they can be deployed more quickly than other options. In contrast, nuclear and natural gas projects have significantly longer lead times, requiring years to develop and bring online.⁶ A diverse energy mix that embraces renewables also supports a more robust and reliable power grid. According to the Pacific Northwest National Laboratory, renewables “support distributed energy systems that lessen power demand on the grid, lower costs, and enhance the reliability and security of critical infrastructure.”⁷

The White House should begin by **reversing its freeze on renewable energy permits, including the pause on wind projects, dropping tariffs on building materials**, and avoid imposing restrictions in the future. Nearly 2,000 gigawatts of solar, wind, and storage projects are currently awaiting transmission interconnection, and experts estimate that the White House’s pause on wind permitting could impact more than half of projects in development.^{8,9} At a time when maximizing all available energy resources is critical to

⁴ Ashley Mehra p. 10. “[Executive Orders on AI: How to \(Lawfully\) Apply the Defense Production Act](#)”. Mercatus Center (January 2025).

⁵ Nancy W. Stauffer. “[The multi-faceted challenge of powering AI](#)”. MIT Energy Initiative (January 2025).

⁶ Sam Newell et al. “[A Wide Array of Resources is Needed to Meet Growing U.S. Energy Demand](#)”. ConservAmerica (February 2025).

⁷ Pacific Northwest National Laboratory. “[What is Renewable Integration?](#)” PNNL.gov.

⁸ Sam Newell et al. “[A Wide Array of Resources is Needed to Meet Growing U.S. Energy Demand](#)”. ConservAmerica (February 2025).

⁹ Jael Holzman. “[Trump’s Wind Order Could Hit ‘More Than Half’ of New Projects](#)”. Heatmap (January 2025).

meeting the rising power demands of AI, this permitting freeze has significantly stalled progress. Meanwhile, China has nearly tripled its nuclear capacity over the past decade.¹⁰ The U.S. cannot afford to selectively prioritize certain energy sources over others—it must embrace a balanced, forward-looking energy strategy to remain competitive.

The White House must also **champion energy permitting reform and direct Congress to pass bipartisan legislation**, like the Energy Permitting Reform Act of 2024 (EPRA). Streamlining the permitting landscape through the EPRA’s judicial review reforms, expedited leasing, renewable energy expansion, and mining regulation improvements will remove bureaucratic barriers and ensure a more efficient energy supply to support competitive AI development. The White House should ensure that permitting reform remains an inclusive, pragmatic effort that prioritizes energy expansion across all sources rather than allowing policy preferences to create unnecessary roadblocks. A balanced approach that streamlines approvals for both traditional and renewable energy projects is essential. Lastly, **tariffs on building materials only drive up the cost of construction** and squander American leadership in AI; the Administration should drop them forthwith.

3. Support critical research at leading US institutions and strengthen the STEM pipeline.

Federal research funding is essential for driving innovation, supporting long-term, high-risk projects that may not attract immediate private sector investment, and strengthening the STEM talent pipeline through grants and education programs. The National Science Foundation (NSF) advances these objectives by allocating over \$700 million annually to AI research and development.¹¹ Fundamental computing research disproportionately relies on the NSF for funding, with the agency supporting 80% of research in this field at U.S. institutions.¹² NSF-funded fundamental computing research laid the foundation for generative AI and continues to drive critical advancements in algorithms, machine learning, high-performance computing, and AI hardware.

The White House should **reverse cuts imposed on the NSF, including recent layoffs, and ensure the NSF is adequately funded and staffed to support critical AI research**. Last year’s 8% budget cut, recent budget freezes, aggressive federal downsizing, and uncertainty about further budget reductions have already disrupted grant funding and hindered the agency’s ability to support key research initiatives. Further, cuts undermine the STEM pipeline, as the opportunity to participate in NSF-funded research plays a

¹⁰ Sean Wolfe. “[China has nearly tripled its nuclear capacity in 10 years](#)”. Power Engineering (May 2024).

¹¹ U.S. National Science Foundation. “[Artificial Intelligence](#)” NSF.gov.

¹² Computing Research Association. “[NSF Budget Cuts Would Put the Future of U.S. Innovation and Security at Risk](#)”. CRA Bulletin (February 2025).

frequent and important role in attracting students to graduate programs.¹³ This comes at a time when China has already surpassed the U.S. in terms of its share of the world's top 1% of cited scientific papers and is on track to match the U.S. in research and development funding by 2030.¹⁴ According to a database maintained by the Australian Strategic Policy Institute, China already outperforms the U.S. in high-impact research output in five of six key AI-related categories.¹⁵ Failing to restore and preserve NSF funding risks further widening this gap.

The White House's AI Action Plan should also call on Congress to **expand and codify the NSF's National AI Research Resource (NAIRR) to ensure its long-term impact beyond its 2024 expiration**. The NAIRR is critical for democratizing AI development, providing researchers outside of major tech companies with access to cutting-edge computing infrastructure, high-quality datasets, and advanced tools that would otherwise be out of reach. By broadening access, NAIRR fosters competition and accelerates AI innovation across diverse sectors. Its pilot projects are already demonstrating the resource's value, driving breakthroughs in synthetic clinical data for cancer research, digital modeling of the U.S. hydrologic cycle, and AI-powered education tools.¹⁶ Without congressional action, the U.S. risks losing this vital infrastructure.

Finally, to advance the administration's goal of placing American workers at the center of AI policy and ensuring they benefit from its advancements, the White House's AI Action Plan should **prioritize investments in AI-related education at the community college and K-12 levels**. Community colleges need funding for reskilling and upskilling programs that prepare workers for AI-driven industries, while K-12 initiatives should focus on AI literacy and skill development. States like Massachusetts¹⁷ and North Carolina¹⁸ are already partnering with businesses and universities to expand AI-focused education, demonstrating the potential of these programs. Federal support can scale these efforts nationwide, equipping a broader workforce to succeed in an AI-powered economy.

4. The White House should avoid imposing additional regulations to enforce ideological neutrality in AI models and instead should prioritize fostering robust competition and consumer choice.

We urge the White House to resist the temptation to advance any additional regulations

¹³ Kathryn Palmer. "[Researchers 'Shocked and Disappointed' After NSF Budget Cuts](#)". Inside Higher Ed (May 2024).

¹⁴ Jeff Tollefson & Richard Van Noorden. "[The US is the world's science superpower — but for how long?](#)". Nature (October 2024).

¹⁵ Australian Strategic Policy Institute. "[Critical Technology Tracker](#)". ASPI (2025).

¹⁶ National Artificial Intelligence Research Resource Pilot. "[Demonstration Projects](#)". NAIRRPilot.org.

¹⁷ Cyndi Reitmeyer. "[MIT Launches Exciting AI Program for Grades 3-12 Nationwide](#)". MIT Open Learning (April 2022).

¹⁸ Alli Lindenberg. "[Community colleges expand programming to prepare students for careers in AI](#)". EdNC (January 2025).

that seek to enforce a standard of ideological neutrality on AI models. Such regulations risk imposing compliance burdens similar to those required under the European Union's AI Act, which directs developers to conduct extensive audits, maintain detailed documentation, and implement costly bias-mitigation measures. A report prepared for the European Commission, written by CEPS, ICF, and Wavestone, estimates compliance costs associated with adhering to the EU's AI Act to equal 17.22% of the total cost to build the AI tool.¹⁹ Whether aimed at enforcing a standard of nondiscrimination based on demographics or political ideology, such regulations will likely produce the same outcome: cumbersome regulatory hurdles that stifle innovation and favor large, well-resourced companies that can absorb the added costs.

Instead of exercising regulatory authority to mandate desired outcomes, the White House should support policies that encourage a broad spectrum of AI model development. By taking a light-touch approach to the regulation of foundation models and democratizing access to critical AI resources, the White House can **support market diversity and empower consumers with more choices**, reducing the risk of a centralized or overly controlled AI ecosystem.

In closing, we appreciate the opportunity to contribute to the development of the AI Action Plan and urge the White House to embrace a strategy that reinforces U.S. leadership in AI while fostering a dynamic, competitive, and innovative ecosystem. An approach that prioritizes strategic investments, minimizes regulatory overreach, and champions a balanced energy policy will ensure that AI development remains a driver of economic growth and national security.

Sincerely,

Todd O'Boyle
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¹⁹ European Commission. Directorate-General for Communications Networks, Content and Technology. "[Study to support an impact assessment of regulatory requirements for Artificial Intelligence in Europe](#)". Publications office of the European Union (April 2021).